SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
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DR. PETER DASZAK, Ph.D.,

as Plaintiff,

v.

New York County
Index No.
164611/2025

ECOHEALTH ALLIANCE Inc., STEVEN SHAPIRO, individually and as Chairman of the Board of Directors of EcoHealth Alliance, Inc., and Juliet Aranoff, Dr. Frederick Baum, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Shedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, Dr. Lilian Wu

as defendants.

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NOTICE OF APPEAL

PLEASE TAKE NOTICE that, the Plaintiff Dr. Peter Daszak, PH.D., hereby appeals upon the law and upon the facts to the Appellate Division of the Supreme Court in and for the First Judicial Department, from the Decision and Order made and entered in the Office of the Clerk of the Supreme Court of the County of New York on July 28, 2026 dismissing the Verified Complaint and from each and every part of the Decision and Order as well as from the whole thereof.

Dated: August 25, 2026
New York, New York

Law Offices of
Joseph E. Gasperetti

By /s/Joseph E. Gasperetti
Joseph E. Gasperetti

Attorneys for Plaintiff Dr. Daszak
2300 Fifth Avenue, Suite 12D
New York, New York 10037
Tel: (917)796-5958
Fax: (212)208-2645
jgasperetti@litlawpc.com

To: Clerk of the Supreme Court,
County of New York,

Joseph Anci, Esq.
Jackson Lewis
Attorney for defendants

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY: COMMERCIAL DIVISION

PRESENT: HON. JENNIFER G. SCHECTER **PART** 54

Justice

----------X

INDEX NO. 164611/2025

DR. PETER DASZAK,

MOTION SEQ. NO. 001

Plaintiff,

- v -

ECOHEALTH ALLIANCE, INC., STEVEN SHAPIRO, JULIET ARANOFF, DR. FREDERICK BAUM, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, DR. LILIAN WU,

DECISION + ORDER ON MOTION

Defendants.

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The following e-filed documents, listed by NYSCEF document number (Motion 001) 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 56, 64, 65

were read on this motion to/for DISMISSAL.

Upon the foregoing documents and for the reasons stated on the record, which shall be e-filed within 45 days, it is ORDERED that defendants' motion to dismiss the complaint is GRANTED, their application to stay discovery is denied as moot, and the Clerk is directed to enter judgment dismissing the complaint.

20260728169936JSC·ICCFE7B396C144FA2487F92350CFB7C11CAC8

7/28/2026
DATE

JENNIFER G. SCHECTER, J.S.C.

CHECK ONE: [X] CASE DISPOSED [ ] NON-FINAL DISPOSITION
[X] GRANTED [ ] DENIED [ ] GRANTED IN PART [ ] OTHER

Supreme Court of the State of New York
Appellate Division: First Judicial Department

Informational Statement (Pursuant to 22 NYCRR 1250.3[a]) — Civil

Case Title:
Set forth the title of the case as it appears on the summons, notice of petition or order to show cause by which the matter was or is to be commenced, or as amended.

DR. PETER DASZAK

- against -

EcoHealth Alliance, Inc., Steven Shapiro, Juliet Aranoff, Dr. Frederick Baum, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Shedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, Dr. Lilian Wu

For Court of Original Instance

Date Notice of Appeal Filed

For Appellate Division

Case Type

- [x] Civil Action
- [ ] CPLR Article 75 Arbitration
- [ ] Action Commenced under CPLR 214-g
- [ ] Action Commenced under CPLR 214-j
- [ ] CPLR Article 78 Proceeding
- [ ] Special Proceeding Other
- [ ] Habeas Corpus Proceeding

Filing Type

- [x] Appeal
- [ ] Original Proceedings
  - [ ] CPLR Article 78
  - [ ] Eminent Domain
  - [ ] Labor Law 220 or 220-b
  - [ ] Public Officers Law § 36
  - [ ] Real Property Tax Law § 1278
- [ ] Transferred Proceeding
  - [ ] CPLR Article 78 (Transferred)
  - [ ] Executive Law § 298
- [ ] CPLR 5704 Review

Nature of Suit: Check up to three of the following categories which best reflect the nature of the case.

- [ ] Administrative Review
- [x] Contracts
- [ ] Election Law
- [ ] Mortgage Foreclosure
- [ ] Real Property (other than foreclosure)
- [ ] Torts
- [ ] Business Relationships
- [ ] Declaratory Judgment
- [ ] Estate Matters
- [ ] Miscellaneous
- [x] Statutory
- [x] Commercial
- [ ] Domestic Relations
- [ ] Family Court
- [ ] Prisoner Discipline & Parole
- [ ] Taxation

Appeal

If an appeal has been taken from more than one order or judgment by the filing of this notice of appeal, please indicate the below information for each such order or judgment appealed from on a separate sheet of paper.

Paper Appealed From (Check one only)

○ Amended Decree	○ Amended Judgment	○ Amended Order
○ Decision	○ Decree	○ Determination
○ Finding	○ Interlocutory Decree	○ Interlocutory Judgment
○ Judgment	◉ Order	○ Order & Judgment
○ Partial Decree	○ Resettled Decree	○ Resettled Judgment
○ Resettled Order	○ Ruling	
○ Other (specify):		

Court Supreme Court
County New York County
Dated July 28, 2026
Entered July 28, 2026
Judge (name in full) Jennifer G. Schechter
Index No. 164611/2025
Stage: ○ Interlocutory ◉ Final ○ Post-Final **Trial:** ○ Yes ◉ No **If Yes, Trial Type:** ○ Jury ○ Non-Jury

Prior Unperfected Appeal and Related Case Information

Are any appeals arising in the same action or proceeding currently pending in the court? ○ Yes ◉ No
If Yes, please set forth the Appellate Division Case Number assigned to each such appeal.

Where appropriate, indicate whether there is any related action or proceeding now in any court of this or any other jurisdiction, and if so, the status of the case:

Original Proceeding

Commenced by: ○ Order to Show Cause ○ Notice of Petition ○ Writ of Habeas Corpus **Date Filed**

Statute authorizing commencement of proceeding in the Appellate Division
N/A

Proceeding Transferred Pursuant to CPLR 7804(g)

Court Choose Court
County Choose County
Judge (name in full)
Order of Transfer Date

CPLR 5704 Review of Ex Parte Order

Court Choose Court
County Choose County
Judge (name in full)
Dated

Description of Appeal, Proceeding or Application and Statement of Issues

Description: If an appeal, briefly describe the paper appealed from. If the appeal is from an order, specify the relief requested and whether the motion was granted or denied. If an original proceeding commenced in this court or transferred pursuant to CPLR 7804(g), briefly describe the object of proceeding. If an application under CPLR 5704, briefly describe the nature of the ex parte order to be reviewed.

The Motion Court granted the defendants' pre-answer motion to dismiss the Verified Complaint.

Issues: Specify the issues proposed to be raised on the appeal, proceeding, or application for CPLR 5704 review, the grounds for reversal or modification to be advanced, and the specific relief sought on appeal.

The Motion Court mistook both the law and the facts. Plaintiff seeks a reversal and a remand to the Motion Court so that discovery may commence.

Party Information

Instructions: Fill in the name of each party to the action or proceeding, one name per line. If this form is to be filed for an appeal, indicate the status of the party in the court of original instance and his, her, or its status in this court, if any. If this form is to be filed for a proceeding commenced in this court, fill in only the party's name and his, her, or its status in this court.

No.	Party Name	Original Status	Appellate Division Status
1	EcoHealth Alliance, Inc.	Defendant	Respondent
2	Steven Shapiro	Defendant	Respondent
3	Juliet Aranoff	Defendant	Respondent
4	Dr. Frederick Baum	Defendant	Respondent
5	Joe Curry	Defendant	Respondent
6	Karen Denton	Defendant	Respondent
7	Ralph E. Gomory	Defendant	Respondent
8	Nancye Green	Defendant	Respondent
9	Nancy Griffin	Defendant	Respondent
10	Robert Hoguet	Defendant	Respondent
11	Charles Hirschler	Defendant	Respondent
12	Geoffrey Potter	Defendant	Respondent
13	Ellen Shedlarz	Defendant	Respondent
14	Lisa Silvershein	Defendant	Respondent
15	Jarret Stephens	Defendant	Respondent
16	Pamela M. Thye	Defendant	Respondent
17	Carlota Vollhardt	Defendant	Respondent
18	Steven Wils	Defendant	Respondent
19	Dr. Lilian Wu	Defendant	Respondent
20			

Attorney Information

Instructions: Fill in the names of the attorneys or firms for the respective parties. If this form is to be filed with the notice of petition or order to show cause by which a special proceeding is to be commenced in the Appellate Division, only the name of the attorney for the petitioner need be provided. In the event that a litigant represents herself or himself, the box marked "Pro Se" must be checked and the appropriate information for that litigant must be supplied in the spaces provided.

Attorney/Firm Name: Joseph E. Gasperetti, Esq., Law Offices of Joseph E Gasperetti
Address: 2300 Fifth Avenue
City: Ny **State:** NY **Zip:** 10037
Telephone No.: 917-796-5958
E-mail: jgasperetti@litlawpc.com
Attorney Type: (●) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
Party or Parties Represented (set forth party number(s) from table above): Plaintiff

Attorney/Firm Name: Joseph Anci, Esq., Jackson Lewis P.C.
Address: 666 Third Avenue, 28th Floor
City: NY **State:** NY **Zip:**
Telephone No.: 212-545-4057
E-mail: Joseph.Anci@jacksonlewis.com
Attorney Type: (●) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
Party or Parties Represented (set forth party number(s) from table above): Defendants

Attorney/Firm Name:
Address:
City: **State:** **Zip:**
Telephone No.:
E-mail:
Attorney Type: ( ) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
Party or Parties Represented (set forth party number(s) from table above):

Attorney/Firm Name:
Address:
City: **State:** **Zip:**
Telephone No.:
E-mail:
Attorney Type: ( ) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
Party or Parties Represented (set forth party number(s) from table above):

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E-mail:
Attorney Type: ( ) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
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Telephone No.:
E-mail:
Attorney Type: ( ) Retained ( ) Assigned ( ) Government ( ) Pro Se ( ) Pro Hac Vice
Party or Parties Represented (set forth party number(s) from table above):